trustees justified in making the *sale* at all? and, Secondly: Supposing the sale itself to be proper, is the purchaser bound to see to the *application* of his purchase-money?

First. Are the trustees justified in proceeding to a sale?

1. **Trust for sale for payment of debts.** — If a testator *devise an estate* to trustees, and direct a sale of it for payment of debts *on the insufficiency of the personal assets*, the trustees *ought* not to dispose of the realty, until it appears that the personal fund is not equal to meet the demands of the creditors. But the point we have here to consider is, how will the *purchaser* be affected, and, as he has no means of investigating the accounts, he is not to be prejudiced should it prove eventually that the personalty is sufficient (*b*). All that could reasonably, and which perhaps *would* be required of him, is, that he should apply to the executor, where the trustee does not sustain that character, and ask if the necessity for the sale has arisen. However, a purchaser is prevented in such a case from dealing exclusively with the trustee out of Court, where a *suit* has been instituted for the administration of the estate (*c*). And the Court itself cannot make a good title where it has been found in the suit that *all the debts have been paid* (*d*).

2. **Power of sale on insufficiency of personal estate.** — But if a testator give not the *estate* but a *power of sale* only
[*451] to * his trustees, and that conditional on the insufficiency of the personal estate, then the purchaser must at his peril ascertain that the power can be exercised (*a*). The difference between a trust and a power is this. In the former case, the trustees, having the legal estate, can trans-

(*b*) Culpepper *v.* Aston, 2 Ch. Ca. 115, *per* Lord Nottingham; Keane *v.* Robarts, 4 Mad. 356, *per* Sir J. Leach; Co. Lit. 290, b, note by Butler, sect. 14; Shaw *v.* Borrer, 1 Keen, 559; Greetham *v.* Colton, 11 Jur. N. S. 848; but see Fearne's P. W. 121.

(*c*) Culpepper *v.* Aston, 2 Ch. Ca. 116, 223, *per* Lord Nottingham; and see Walker *v.* Smalwood, Amb. 676; and *supra.*

(*d*) Carlyon *v.* Truscott, 20 L. R. Eq. 348.

(*a*) Culpepper *v.* Aston, 2 Ch. Ca. 221; Dike *v.* Ricks, Cro. Car. 335; S. C. Sir W. Jones, 327.

Seeger, 8 Watts & S. 222. See note on trustee's liability. In the United States deeds contain a receipt for the purchase price, and these deeds are necessarily signed by all the trustees, otherwise an independent receipt should be had, signed by all the trustees.